

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR DECEMBER 2, 2025
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW BY
THE JUDGE

**Unless the Court directs otherwise, appearances by counsel and parties in
Department 38 may be made as follows:**

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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| 1.
9:00 AM | MSP13-01560 MATTER OF BESS AFFINITO
HEARING IN RE: PETITION FOR REPORT OF TRUST FILED BY MICHAEL AFFINITO ON 07/15/2025

Need:
1. Appearances
2. Evidence of written demand for accounting as required by PrC §17200(b)(7).
3. Proposed Order |
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| 2.
9:00 AM | MSP15-00855 ESTATE OF DOMINICK LAMAR NEWTON
HEARING IN RE: PETITION GRANTING ADMINISTRATOR AUTHORITY TO ESTABLISH TRUST TO ADMINISTER ESTATE INCOME AND TO EMPLOY A TRUST ATTORNEY FILED ON 07/14/25 BY KENDRA SMITH

Petitioner still must do the following: <ol style="list-style-type: none">1. Appear at the hearing2. File a verified declaration to state the date the Petition was verified. Neither the Petition, nor the Declaration filed 07/14/25 were signed. PrC § 1021. CCP § 2015.5. CRC 7.1033. File a verified declaration to list the names and addresses of all persons entitled to notice4. Have a copy of the Notice of Hearing and Petition mailed to all persons entitled to notice and file the completed Notice of Hearing with the Court |
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3. 9:00 AM	MSP19-01638 IN RE THE MATTER OF THE GERONIMO PEREZ TRUST HEARING IN RE: FOURTH AND FINAL ACCOUNT AND REPORT FILED BY HERB THOMAS ON 07/10/2025
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Need:

1. Appearances

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| 4.
9:00 AM | MSP21-00907 ESTATE OF MATTHEW JOHNSON III
HEARING IN RE: WAIVER OF ACCOUNTING AND REPORT; PETITION FOR ALLOWANCE OF
COMPENSATION; FINAL DISTRIBUTION FILED ON 02/28/25 BY SHARON HOLMES JOHNSON

Need:
1. Verified declaration by petitioner to state whether notice was given, or needed,
to the Director of the California Victim Compensation Board, i.e., does
petitioner have any reason to believe any heir <u>has previously been confined</u>
in any prison or other correctional facility. PrC §§ 216, 9202(b) |
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5. **MSP21-01486 ESTATE OF ROSARIO STROUP**
9:00 AM HEARING IN RE: PETITION FOR FINAL DISTRIBUTION FILED BY JOSEPH STROUP ON 5/1/25

Need:

1. Creditor Claims fully listed in Petition including date filed, including claim filed by Phillips and Cohen on 1-10-2022. PrC § 10900; CRC § 7.403
2. Satisfaction of Phillips and Cohen's claim; otherwise, petitioner will have to give written notice of rejection (Judicial Council form DE-174) and then creditor would have 3 months from date of notice to act. PrC § 9353
3. Verified declaration by petitioner to specify how attorney's fees will be paid. There is no cash on hand.
4. Verified declaration by petitioner to specify whether all charges for legal advertising, bond premiums, probate referee's services and costs of administration have been paid. LR 7.317
5. Revised, proposed Order to specify how attorney's fees will be paid. A judgment, decree or order must be complete in itself. LR 7.110

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6. 9:00 AM	MSP21-01899 MATTER OF THE IVAN TORRES SPECIAL NEEDS TRUST HEARING IN RE: PETITION FOR THIRD AND FINAL ACCOUNTING AND REPORT OF TRUSTEE FROM 9/1/2023 THROUGH 8/31/2024 AND TO APPROVE TRUSTEE'S AND ATTORNEY'S FEES FILED ON 10/29/2024 BY HERB THOMAS Need: 1. Appearances Notes: a. Petition to Approve First Account and Report filed 10/06/25 by Heather fisher, set 03/03/26
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7.	P23-00184	MATTER OF: THE ANTONIO ANDRADE, JR. AND LINDA J. ANDRADE REVOCABLE LIVING TRUST
9:00 AM	HEARING IN RE: PETITION FOR ORDER TO INVALIDATE SIXTH, SEVENTH, AMENDMENT TO TRUST, FINANCIAL ELDER ABUSE, ACCOUNTING, REMOVAL OF TRUSTEE & INJUNCTION FILED ON 01/31/23 BY KAREN HERNANDEZ AND DEBORAH JOHNSON	
	Need: 1. Appearances to report status, including discovery and mediation 2. Proposed Order	
	Notes: a. "Lauren Andrade, Trustee's Response and Objection..." filed 11-29-2023. b. Order (1) Suspending Lauren Andrade as Trustee and (2) Appointing Temporary Trustee filed 2-24-2025; Order appointed Deborah Johnson and Karen Hernandez as temporary successor trustees.	

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8. **P23-01465** **ESTATE OF: ELOISE FRAZIER**
9:00 AM HEARING IN RE: REPORT OF SALE & PETITION FOR ORDER CONFIRMING SALE OF REAL PROPERTY
FILED BY DONALD GOSSETTE ON 8-21-25

Need:

1. Appearances

Amended Report of Sale filed 09/02/25, hearing set 01/27/26

Notes:

- A. Real property is located at 1909 Francisco Way, Richmond, CA
- B. Sale price is \$.460,000.00
- C. Overbid price is \$.483,500.00

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9. **P23-01818** **ESTATE OF: CLARENCE CANSON**
9:00 AM HEARING IN RE: MOTION FOR ORDER TO SET ASIDE THE ORDER APPOINTING STEVEN A SMITH THE
ADMINISTRATOR OF THE ESTATE FILED BY DONALD IWUCHUKWU ON 07/14/2025

Need:

1. Appearances
2. Proof of mailing Notice of Hearing to all persons entitled to notice
3. Proposed Order

Notes:

- a. Opposition filed 11/17/25 by Steven A. Smith
- b. Motion for Sanctions Against Christian Anyiam and Donald Iwuchukwu filed 09/12/25 by Steven A Smith set 02/05/2026
- c. Motion to Dismiss or, alternatively, Motion to Strike filed 09/12/25 by Steven A Smith, set 02/05/26

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10.	P24-00535	MATTER OF: LOWELL D. SEWELL AND ELLA M. SEWELL REVOCABLE LIVING TRUST, DATED MARCH 27, 2008, AS RESTATED JULY 13, 2016
9:00 AM	HEARING IN RE: MOTION TO BE RELIEVED AS COUNSEL FILED BY GLORIA MURPHY ON 07/10/25	

Need:

1. Appearances

Notes:

- a. Petition to Recover Title filed 03/28/24 by Michael Patrick Sewell & Trial Setting Status set 03/10/26

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11. **P24-01277** **MATTER OF: THE JOHNSON REVOCABLE TRUST**
9:00 AM HEARING IN RE: TO INVALIDATE TRUST FILED BY SIENNA DUNN ON 7/25/26

Need:

1. Appearances
2. 30 days personal service of petition and Notice of Hearing on Barbara Delos Santos and Keylan Dunn because pleading in part is a civil action. Petition requests exemplary damages and elder abuse remedies.
3. Verified declaration by petitioner to clarify relationship of Joseph Crittle, Jr. listed on Proof of Service attached to Notice filed 7-31-2024 so court can determine whether he is a person entitled to receive notice. He is not listed at ¶ 83 as a person entitled to receive notice.
4. Proposed Order

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12.

9:00 AM

P25-00726

PETITION OF: GREGORY WILSON

HEARING IN RE: PETITION TO DETERMINE SUCCESSION TO REAL PROPERTY FILED ON 4-24-25
BY GREGORY WILSON

Need:

1. Appearances
2. Petition verified by Jeremy Wilson. PrC § 13152(a)
3. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice
4. Verified declaration by petitioner to include Attachment 11, not attached as indicated
5. Proposed Order

Note: Inventory and Appraisal filed 4-24-2025 does not include real property.

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**13. P25-01235 MATTER OF: STANLEY M. AND ANGELA M. HUMMEL FAMILY TRUST DATED
AUGUST 21, 1989**

9:00 AM HEARING IN RE: PETITION TO MODIFY TRUST TERMS FILED BY CRAIG BASSEL ON 07/11/2025

Need:

1. Appearances
2. Revised Proposed Order that has it's own exhibits attached, and does not refer back to exhibits of the Petition. A judgment, decree or order must be complete in itself. LR 7.110